punishable with a fine and/or a sentence of imprisonment of up to two years (for Section 354) and one year (for Section 509).

If it took a few days for Bajaj to learn that it would be difficult to secure any meaningful administrative or disciplinary action against Gill, it took only a few moments for her to realize that criminal conviction would be even harder. The inspector general registered her complaint, gave Bajaj a receipt and sealed a hard copy of the complaint in an envelope, rather than placing it in the file of complaints. On being asked by Bajaj why the complaint was being placed in a sealed envelope, he said that his duty was only to register the complaint: 'What I do with it after that is entirely up to me.'[13] He told Bajaj that he would not actively investigate the complaint without a court order.

Unsurprisingly, the police investigation went nowhere as weeks and months passed after the complaint was filed. The Bajajs got wind of the fact that the police were preparing to close the investigation because – despite there being so many eyewitnesses to the incident – no corroborating evidence was available, as none of the eyewitnesses were forthcoming. It is unlikely that the eyewitnesses to the incident would have wanted to be involved in a 'police case', not least against a person as powerful as Gill. This prompted Mr Bajaj to file a separate complaint with the chief judicial magistrate about four months after the party at the Kapur residence. In his complaint, Mr Bajaj alleged that as a result of Gill's position, a fair and impartial investigation of the case had not taken place. The police had neither arrested Gill, nor undertaken any meaningful investigation following Mrs Bajaj's complaint. To provide evidence in support of his complaint, Mr Bajaj asked the magistrate to summon the report sent by Ribeiro to the governor, as well as an order passed by the governor a few days thereafter (which included the injunction on Gill attending dinner parties after 8.30 p.m.). Parts of Ribeiro's report were already alleged to have been leaked to the press, including his prognosis that Gill was 'in the habit of getting drunk and misbehaving with women'.[14]

The request for disclosure of the reports of the governor and his adviser yielded an unexpected battle. The government of Punjab staunchly opposed